Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1179
Claimant:	Shelby Leblanc
Adjuster:	Chelsea Hebert

10/18/2023 - Claim opened following report of a sideswipe collision during a lane change on the highway. Insured vehicle reported contact with the claimant's vehicle on the right rear quarter panel. Claimant reports a wrist fracture and was transported from the scene. Liability questions remain open pending statements and scene documentation.

10/22/2023 - Spoke with the claimant by phone. Claimant is not represented by an attorney and says they want to handle the claim directly. Explained the claims process, the coverage types that may apply, and the documents needed. Claimant confirmed the wrist fracture diagnosis and is in a cast. Requested medical records and an itemized bill from the treating provider with signed authorization.

10/31/2023 - Received the insured's recorded statement. Insured states they checked the mirrors and signaled before moving into the adjacent lane, and felt a bump on the passenger side. Insured did not see the claimant's vehicle until after contact. Traffic camera request submitted to the municipality for footage of the intersection and roadway segment. Photos of both vehicles reviewed and damage is consistent with a sideswipe pattern.

11/06/2023 - Claimant provided a written statement describing the other vehicle drifting into their lane as they were already traveling in the right lane. Claimant states they braked and steered right but made contact. Witness contact information was obtained from the claimant and a follow-up call is scheduled. Claimant was given a written summary of the claim status and a reminder that medical documentation is still outstanding.

11/07/2023 - Medical records received and reviewed. Records confirm a closed wrist fracture with a treatment plan that includes immobilization and a follow-up appointment with an orthopedic provider. Witness statement obtained and reports the insured vehicle moved into the adjacent lane without a clear gap. Liability leaning toward the insured based on current evidence. Next step is to prepare a settlement evaluation once the treating physician provides a prognosis and the medical blils are complete.

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Recorded Statement

Claim number:	C-1179
Statement of:	Shelby Leblanc
Taken by:	Chelsea Hebert
Date:	10/15/2023

Q: Thanks for taking the time to do this recorded statement. Can you confirm you're giving this statement voluntarily and that it's being recorded?

A: Yes, I understand it's being recorded and I'm giving it willingly.

Q: Great. Can you walk me through what happened on the day of the accident?

A: I was driving on the main road in Baytown, heading toward the interchange. Traffic was moving slowly, so I decided to move from the right lane into the middle lane to get around a slower truck.

Q: Before you changed lanes, did you check your mirrors and look over your shoulder?

A: I checked the mirror and I saw the lane looked clear. I didn't turn my head fully to look over my shoulder, which I probably should have done.

Q: What happened next?

A: As I started drifting over, I heard a horn and then felt a bump on the driver's side. The other car was in my blind spot. It sideswiped my car and both of us pulled to the shoulder.

Q: Did you see the other vehicle before the contact?

A: No, I didn't see it until it was already beside me.

Q: How were you injured?

A: My car spun a little when we hit, and I grabbed the steering wheel hard with my left hand. I felt a sharp pain in my wrist right away. I was taken to the hospital and they told me it was fractured.

Q: Are you still receiving treatment for the wrist?

A: Yes, I have a cast right now and I have a follow-up appointment with an orthopedic sepcialist next week.

Q: Is there anything you'd like to add or correct in your statement?

A: No, I think that covers it. I'm willing to provide any additional records you need.

Q: Thank you. That conculdes the statement.